

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: October 22, 2025

TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	24CV453773	WELLS FARGO BANK, N.A. vs Garreth King	Motion: Summary Judgment/Adjudication Plaintiff's unopposed motion is GRANTED. In response to the Request for Admissions, Defendant admitted he was issued the Personal Loan in question, that he was to repay, that he received monthly statements, that he never disputed the accuracy of any of the monthly billing statements with Plaintiff, and that he failed to remit any further payments on the Personal Loan since December 28, 2023, leaving an outstanding balance of \$21,778.21. There is no disputed issue of fact. Plaintiff to prepare the final order and judgment within 10 days of the date of the hearing. (See Local Civil Rule 7.C ["Proposed orders may not be submitted with moving papers before a hearing on a regularly noticed motion unless ordered by the Court or required by applicable statute or Rule of Court If instructed to prepare an order after a hearing, the proposed order must be lodged with the court electronically in PDF format attached to Judicial Council Form EFS-20"].)

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LINE #	CASE #	CASE TITLE	RULING
LINE 2	23CV415947	Fok et al vs Wong et al	Motion: Compel Defendants move for an order compelling Plaintiff, MABEL FOK, to respond to Defendants' Supplemental Request for Production of Documents (set one) and for sanctions for Plaintiff's failure to respond in any fashion to Defendants' discovery. Defendants' unopposed motion is GRANTED. (See <i>Laguna Auto Body v. Farmers Is. Exchange</i> (1991) 231 Cal.App.3d 481, 489 ["appellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition to the motion to compel or the dismissal motion, leading the trial court and us to presume they had no meritorious arguments"].) Plaintiff shall provide code-compliant responses without objections within 15 days of service of the final order. The Court will award sanctions in the amount of \$306.00 which represents 2 hours preparation time and a \$40.00 filing fee. The Court will not award sanctions for anticipated travel and appearance at a hearing on the motion, which is unlikely to be contested. Plaintiff shall pay to Defendants these sanctions within 15 days of service of the final order. Defendants to prepare the final order within 10 days of the date of the hearing.

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LINE #	CASE #	CASE TITLE	RULING
LINE 3	23CV415947	James Fok et al vs Peter Wong et al	Motion: Compel Defendants move for an order compelling Plaintiff, MABEL FOK, to respond to Defendants' Supplemental Interrogatory Requests (set one) and for sanctions for Plaintiff's failure to respond in any fashion to Defendants' discovery. Defendants' unopposed motion is GRANTED. (See <i>Laguna Auto Body v. Farmers Is. Exchange</i> (1991) 231 Cal.App.3d 481, 489 ["appellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition to the motion to compel or the dismissal motion, leading the trial court and us to presume they had no meritorious arguments"].) Plaintiff shall provide code-compliant responses without objections within 15 days of service of the final order. The Court will award sanctions in the amount of \$306.00 which represents 2 hours preparation time and a \$40.00 filing fee. The Court will not award sanctions for anticipated travel and appearance at a hearing on the motion, which is unlikely to be contested. Plaintiff shall pay to Defendants these sanctions within 15 days of service of the final order. Defendants to prepare the final order within 10 days of the date of the hearing.